

**CHAPTER xxxiv.**

An Act to enable the Barry Railway Company to acquire lands in the county of Glamorgan to extend the time for the completion of certain railways and the acquisition of certain lands and for other purposes.

A.D. 1913.

[15th August 1913.]

WHEREAS it is expedient that the Barry Railway Company (hereinafter referred to as "the Company") should be empowered to acquire the lands referred to in this Act:

And whereas it is expedient that the periods now limited for the construction by the Company of the railways respectively authorised by the Barry Railway Act 1897 the Barry Railway Act 1907 the Barry Railway Act 1909 and the Barry Railway Act 1911 and described or referred to in those Acts or some or one of them should be extended and that the periods now limited for the compulsory purchase of the lands required for the purposes of the railways and works respectively authorised by the Barry Railway Act 1907 the Barry Railway Act 1909 and the Barry Railway Act 1911 should also be extended:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas a plan of the lands which may be taken under the powers of this Act and also a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were deposited with the clerk of the peace for the county of Glamorgan and are hereinafter respectively referred to as the deposited plan and book of reference:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

A.D. 1913. — May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. 1. This Act may be cited as the Barry Railway Act 1913.

Incorporation of general Acts. 2. The following Acts and Part of an Act are (except where the same are inconsistent with or expressly varied by this Act) incorporated with and form part of this Act (namely):—

The Lands Clauses Acts; and

Part II. (Extension of time) of the Railways Clauses Act 1863.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

The expression "the Company" means the Barry Railway Company;

The expression "the Act of 1907" means the Barry Railway Act 1907;

The expression "the Act of 1909" means the Barry Railway Act 1909;

The expression "the Act of 1910" means the Barry Railway Act 1910;

The expression "the Act of 1911" means the Barry Railway Act 1911.

Power to purchase additional lands. 4.—(1) Subject to the provisions of this Act the Company may enter upon purchase take hold and use for the purposes of their undertaking all or any of the lands hereinafter described which are delineated on the deposited plan and described in the deposited book of reference and may hold and use for the said purposes such of the said lands as have already been purchased by or on behalf of the Company (that is to say):—

Lands comprising foreshore and other lands in the county of Glamorgan situate partly in the parish of Barry and partly in the parish of Sully and lying to the south-east of the fence of the Company between the road leading

from Cadoxton to Sully and the mouth of the Cadoxton River and bounded on the south by the road leading from the said road to Bendrick Road and on the south-east by lands belonging or reputed to belong to Lord Ashby St. Ledgers. A.D. 1913.

(2) Any of the lands hereinbefore described which shall have been purchased by the Company before the passing of this Act shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired by the Company under the powers of this Act.

5.—(1) The Company shall not without the consent of the Barry Urban District Council supply water for domestic or trade purposes or gas to any premises upon the lands described in the section of this Act of which the marginal note is "Power to purchase additional lands" and occupied by any person other than the Company but such consent shall not be unreasonably withheld and shall if not given in the case of any such premises to which the Company shall desire to supply water for any such purpose as aforesaid or gas be deemed to be unreasonably withheld if the said council are not themselves able and willing to supply water for that purpose or gas (as the case may be) to those premises upon reasonable terms and within a reasonable time: Restricting Company's power of supplying water or gas on lands to be acquired.

Provided always that it shall be lawful for the Company whenever they shall require so to do for or in connection with any purpose for which they may require to use the said lands at their own expense and in such manner as may be agreed between the Company and the said council or as failing such agreement may be determined by arbitration as hereinafter provided to take up and relay in a different position or to raise or lower the level of any mains pipes or works for or in connection with the supply of water or gas or any sewer or drain laid or placed by the said council in under or upon the said lands.

(2) If any difference shall arise between the Company and the said council under this section such difference shall be determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the Local Government Board and the provisions of the Arbitration Act 1889 shall apply to any such determination.

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Application
of Building
Acts and
byelaws.

6. The provisions of any Acts and byelaws relating to buildings in force in the district in which any part of the lands described in the section of this Act of which the marginal note is "Power to purchase additional lands" is situate shall apply to and with respect to any buildings for trade or domestic purposes to be erected on that part of the said lands other than buildings used or intended to be used by the Company for the purposes of their railways or docks and the provisions of such Acts and byelaws relating to the width of new streets shall apply to and with respect to any part of the said lands adjoining or abutting upon any public highways existing at the passing of this Act if and when they become new streets. Provided that the Company shall not be required to set back any buildings erected on such lands for a greater distance than eighteen feet from the present centre line of such highways.

Extension of
time for
completion
of certain
railways.

7.—(1) The period limited by the Act of 1910 for the completion of the railways described in and authorised by the Barry Railway Act 1897 and also described or referred to in the Act of 1907 and the Act of 1910 is hereby extended until the fifteenth day of July one thousand nine hundred and eighteen and sections 12 13 and 14 of the said Act of 1897 shall be read and have effect accordingly.

(2) The period limited by the Act of 1911 for the completion of the railways and works respectively described in and authorised by the Act of 1907 and the Act of 1909 and also described or referred to in the Act of 1911 is hereby extended until the twenty-eighth day of August one thousand nine hundred and nineteen and sections 20 21 and 22 of the Act of 1907 and of the Act of 1909 shall be read and have effect accordingly.

(3) The period limited by the Act of 1911 for the completion of the Deviation Railways Nos. 2 and 3 described in and authorised by that Act is hereby extended until the twenty-eighth day of August one thousand nine hundred and nineteen and sections 7 12 and 13 of the said Act shall be read and have effect accordingly.

Extension of
time for
purchase of
certain
lands.

8.—(1) The period limited by the Act of 1910 for the compulsory purchase of lands required for the purposes of the railways and works described in and authorised by the Act of 1907 is hereby extended until the twenty-eighth day of August

one thousand nine hundred and eighteen and section 19 of the Act of 1907 shall be read and have effect accordingly. A.D. 1913

(2) The period limited by the Act of 1911 for the compulsory purchase of lands required for the purposes of the railways and works described in and authorised by the Act of 1909 is hereby extended until the twenty-eighth day of August one thousand nine hundred and eighteen and section 19 of the Act of 1909 shall be read and have effect accordingly.

(3) The period limited by the Act of 1911 for the compulsory purchase of lands required for the purposes of the railways and works described in and authorised by that Act is hereby extended until the twenty-eighth day of August one thousand nine hundred and eighteen and section 11 of the said Act shall be read and have effect accordingly.

9. Subject to the conditions hereinafter set forth any two justices having jurisdiction in any one of the counties cities or boroughs in which the constables hereinafter mentioned are to act may on the application of the Company appoint all or so many as they think fit of the persons recommended to them for that purpose by the Company to act as special constables upon and within the whole of the railways docks stations and works belonging to or worked by the Company and the following provisions shall apply to every appointment so made:— Special constables.

(1) Every person so appointed shall make oath or declaration in due form of law before any justice having jurisdiction in any one of the counties cities or boroughs in which such person is to act duly to execute the office of a constable:

(2) Every person so appointed and having been sworn or having made declaration as aforesaid shall during the continuance of his appointment have all the powers protection and privileges of a constable in respect of the exercise of his duties and may follow and arrest any person who has departed from any of the said railways docks stations or works after committing therein or thereon any offence for which he might have been arrested while within or upon the said railways docks stations or works:

(3) Any two justices assembled and acting together or the Company may dismiss from his office or accept the

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resignation of any constable so appointed and thereupon all powers protection and privileges belonging to such person by virtue of such appointment shall wholly cease. No person so dismissed or resigning shall be capable of being re-appointed except with the consent of the authority by whom he was dismissed:

(4) The local authorities of any county city or borough shall not be liable for any expense of or be responsible for any acts or defaults of such constables or for anything connected with or consequent upon their appointment and nothing in this Act contained shall restrict or affect the jurisdiction or powers of the respective local authorities of the county city or borough as the case may be or of any police force:

(5) A constable appointed as aforesaid shall not act as such unless he be in uniform or provided with an authority to act as a constable which authority the justice before whom such constable makes oath or declaration as aforesaid is hereby empowered to grant and if the constable be not in uniform he shall show such authority whenever called upon to do so.

Company
may apply
their funds
to purposes
of Act.

10. The Company may apply towards the purposes of this Act any moneys which they are already authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised.

Crown
rights.

11. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Provision
as to general
Railway
Acts.

12. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to railways

or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels. A.D. 1913.

13. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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